§1

Introduction

Two conceptions of equality of opportunity are prevalent today in Western democracies. The first says that society should do what it can to "level the playing field" among individuals who compete for positions, or, more generally, that it level the playing field among individuals during their periods of formation, so that all those with relevant potential will eventually be admissible to pools of candidates competing for positions. The second conception, which I call the nondiscrimination principle, states that, in the competition for positions in society, all individuals who possess the attributes relevant for the performance of the duties of the position in question be included in the pool of eligible candidates, and that an individual's possible occupancy of the position be judged only with respect to those relevant attributes. An instance of the first principle is that compensatory education be provided for children from disadvantaged social backgrounds, so that a larger proportion of them will acquire skills required to compete, later on, for jobs against persons with more advantaged childhoods. An instance of the second principle is that race or sex, as such, should not count for or against a person's eligibility for a position, when race or sex is an irrelevant attribute insofar as the performance of the duties of the position is concerned.

Indeed, one can view the nondiscrimination principle as deriving from a particular interpretation of the level-the-playing-field principle. That interpretation says that, in the presence of discrimination, some persons have an unfair advantage over others in the competition for positions, because their eligibility for the position in question is considered superior on account of social attitudes and practices which, indeed, should not count. The playing field is leveled by insisting that such attitudes and practice indeed *not* count.

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But the typical application of the level-the-playing-field principle goes farther than the nondiscrimination principle. It might, for example, say that equal opportunity requires that educational expenditures per pupil in public schools be equalized in a state or country. Were such equalization not to have been implemented, then nondiscrimination alone, in the competition for jobs, would not constitute the provision of equal opportunity, for earlier the playing field was not leveled, if children from rich school districts had access to better education than did children from poor school districts. Indeed, equalizing per pupil expenditures may not go far enough toward leveling the playing field in such cases. If an educated child is the output forthcoming from applying a certain technology to a bundle of inputs or resources, some of which are "internal" to the child—his genes, his family, his neighborhood—and some of which can be supplied "externally" by the school district—teachers, schools, books—then leveling the playing field might be thought to require compensating those with inferior bundles of internal resources with an extra dose of external resources.

Among the citizens of any advanced democracy, we find individuals who hold a spectrum of views with respect to what is required for equal opportunity, from the nondiscrimination view at one pole to pervasive social provision to correct for all manner of disadvantage at the other. Common to all these views, however, is the precept that the equal-opportunity principle, at some point, holds the individual accountable for the achievement of the advantage in question, whether that advantage be a level of educational achievement, health, employment status, income, or the economist's utility or welfare. Thus there is, in the notion of equality of opportunity, a "before" and an "after": before the competition starts, opportunities must be equalized, by social intervention if need be, but after it begins, individuals are on their own. The different views of equal opportunity can be categorized according to where they place the starting gate which separates "before" from "after."

I attempt in this essay to propose a precise way that we can organize our disparate views about equal opportunity. More specifically, different people have different conceptions about where the starting gate should be, or about the degrees to which individuals should be held accountable for the outcomes or advantage they eventually enjoy. My purpose is to propose an algorithm which will enable a society (or a social planner) to translate any such view about personal accountability into a social policy that will implement a kind or degree of equal opportunity consonant with that view. If my algorithm is generally accepted as a reasonable one, then the political

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debate over what equality of opportunity requires can be reduced from one over social policy to a more fundamental debate about the proper realm of individual accountability. For once that realm has been agreed upon, or once a view of what that realm should be has been victorious through political competition, then a specific equal-opportunity policy will follow automatically, as it were, from the application of my proposed algorithm.

This should be contrasted to the way debate over equal opportunity takes place today, which is primarily over what the social policy should be. But that debate is often confused, as the participants do not share a common notion or definition of what equality of opportunity consists in. I propose, if you will, a definition of equal opportunity. It will not resolve the debate, but it can force it to take place over questions which are more fundamental than the choice of one particular social policy or another.

I have just said that my aim is pluralistic, in the sense that I shall provide a tool that can be used to calculate an equal-opportunity policy consonant with any of a spectrum of views of individual accountability. It is pluralistic in another sense as well. People with many different conceptions of what distributive justice consists in endorse equality of opportunity. I do not intend to advocate a particular conception of distributive justice, or even the view that distributive justice consists in some form of equal opportunity. (Perhaps I believe that to be the case, but it is a case I shall not prosecute here.) People who hold various theories of distributive justice advocate the provision of equal opportunity not only in different degrees (that is, with different conceptions of accountability) but also in different spheres of social life. I shall endeavor to respect this variety of views by showing how the algorithm of equal opportunity that I propose can be applied in specific spheres. Sections 8, 9, and 10 will apply the algorithm to the spheres of health, education, and employment, and section 11 presents a summary of an attempt to calculate the educational policy that would equalize opportunities for earning income in the United States. It is my hope, then, that persons from many points on the political spectrum will be able to use my proposal without committing themselves to a more pervasive egalitarianism than they are prepared to endorse.

I use two techniques in this essay, the philosophic and the economic. The former is used to locate the relevant concepts and to put forth a definition of equality of opportunity (principally in sections 2, 3, and to some extent in sections 12 and 14); the latter is used to move from the conceptual and somewhat imprecise level to a precise definition and consequent social policy. The preponderance of "economic" sections is due not to my

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thinking that the philosophical aspects of the problem are easier or fewer but, rather, to my being a trained economist and an untrained philosopher. Consequently, my economic imagination is considerably more developed than my philosophical one, a personal misfortune reflected in the sectional distribution of techniques. That having been said, I wish to emphasize that this essay's immediate intellectual forebears are the writings of three philosophers: Ronald Dworkin (1981a, 1981b), Richard Arneson (1989, 1990), and G. A. Cohen (1989). Although in the interest of brevity I do not attempt here to explain how my views descend from theirs, I have tried to do so in a recent book (Roemer 1996, chaps. 7, 8).

As the nondiscrimination principle is well known, this essay's task is to articulate carefully the "level-playing-field" view of equal opportunity. I will usually identify equality of opportunity with its "level-the-playing-field" interpretation. It is only in sections 12 and 14 that the nondiscrimination view is specifically discussed, and contrasted with the more inclusive level-the-playing-field view. It is in section 12 that I propose how we may decide what the scope of each of these two principles should be on the domain of social allocation issues.

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§2

Circumstances, Types, and Autonomous Choice

I shall assume, then, that the purpose of an equal-opportunity policy is to level the playing field. What features, in the backgrounds of the individuals in question, correspond to the mounds and troughs in the playing field that should be leveled off? I propose that these are the differential circumstances of individuals for which we believe they should not be held accountable, and which affect their ability to achieve or have access to the kind of advantage that is being sought. To be concrete, consider the access to a good life that is facilitated or made possible by education. Our society considers education a sufficiently important input into the good life that it views the social provision of a decent education to all individuals as necessary for equalizing opportunities for attaining the good life. Indeed, providing equal opportunities might seem to require providing equal amounts of educational resources for all individuals, and this goal has been achieved to varying extents in different countries and states. In the United States, education has historically been funded by municipalities, and this engenders unequal schools for municipalities with unequal tax bases or for municipalities which decide to fund education at different levels. A number of states have attempted to equalize educational resources by cutting the link between local taxes and school funding. In California, for instance, there is a law requiring the state to fund local public schools so that an equal amount is spent on each student in the state. The landmark *Brown* case (1954) provided that equal education for blacks and whites required that schools be integrated: the previous "separate but equal" policy was, it was ruled, oxymoronic. But in the United States, even were public educational financing to be equalized per capita, educational funding would not be equalized, because of the existence of private schools. In the Nordic countries, private schooling is for all practical purposes unavailable.

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Guaranteeing equal per capita financing of educational facilities is, however, not sufficient to provide equal educational achievement, since different children are able to use educational resources (teachers, books, school buildings) with different degrees of effectiveness or efficiency. To take an extreme case, mentally retarded children will require more resources than normal children to reach a similar level of functioning, or at least a level that we find to be acceptable. That we provide more educational resources for such children shows that we do not think that equal opportunity for the good life, insofar as the educational dimension is relevant, is achieved by providing equal educational resources per capita: we believe that more resources should be provided to some types of child if those children are unable to process the resources as effectively as others. The problem is to decide: when is it the case that different types of child are unable to process resources with equal effectiveness, and when is it the case that, though able to process them equally effectively, they do not by virtue of choice?

We must distinguish between the circumstances beyond a child's control which influence her ability to process educational resources and her acts of autonomous volition and effort. Equalizing opportunity for the good life, insofar as education is an input—or, more precisely, equalizing opportunity for educational achievement—requires distributing educational resources in such a way that the differential abilities of children to turn resources into educational achievement are compensated for, where those abilities are determined by circumstances beyond the control of the individual. Differential achievements due to the application of autonomous volition, however, should not be "leveled" or compensated for by an equal-opportunity policy.

Thus I am defining the "ability" of a child to transform resources into educational achievement as the propensity she has to effect that transformation, by virtue of the influence of circumstances beyond her control, which—let us say, for the moment—include her genes, her family background, her culture, and more generally, her social milieu, to the extent that that milieu is unchosen. But two children with the same relevant circumstances, and hence the same ability, may achieve different amounts of education by virtue of applying different amounts of effort. One extreme possibility is that circumstances determine everything, so that there is no room left for autonomous effort: if this were true, then we would say that what appears to be differential effort is in fact fully determined by circumstances beyond the control of the individuals. This case, which I call the deterministic case, is just one possibility. The general case is that educational achievement is determined jointly by circumstances and freely chosen effort, and equality

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of opportunity requires compensating persons for the differences in their circumstances, insofar as those differences affect educational achievement, but not compensating them for the consequences of the differential application of effort.

Suppose—a tall order—that we knew exactly what circumstances jointly determined a child's ability to process resources into educational achievement. Suppose, further, the circumstances of a child could be precisely characterized as the value of a certain vector with, say, n components. Let us suppose, for simplicity, that this vector takes on a number of values in the population, considerably fewer than the number of individuals. Then we could partition the population of children in question into a set of *types,* where a type consists of all individuals whose value of this vector is the same. (In practice, we would define a type as the set of persons whose circumstantial vectors were almost the same.) By definition of ability and type, all individuals in a given type have the same ability to transform resources into educational achievement. By supposition, there are, on average, a fairly large number of individuals in the average type, since the number of types is small compared with the number of individuals. Let us further suppose that there is a large number of individuals in each type.

I would construct the equal-opportunity policy as follows. Suppose we distribute the educational resources in a way so that, within each type, each individual receives the same amount of resources. (There may be, however, different per capita amounts of the resource for different types.) We will observe, in all likelihood, a *distribution* of effort levels in each type, leading to differential educational achievements within each type. (I am here assuming that effort is one-dimensional and measurable.) Note that this distribution is itself a characteristic of the type, not of any individual. *Where* on that distribution an individual sits is, however, by construction, due to his choice of effort.

I propose that the equal-opportunity policy must equalize, in some average sense yet to be defined, the educational achievements of all types, but not equalize the achievements within types, which differ according to effort. Thus equality of opportunity requires compensating individuals with different amounts of resources for their differential abilities, but not for their differential efforts, holding ability (the consequence of circumstances) constant.

How can the common view, that equality of opportunity (for educational achievement) requires providing an equal resource bundle to all children, be viewed as a special case of the (as yet imprecise) definition I have offered

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of equal opportunity? It is the case in which we consider all children to belong to the same type. Then equal opportunity simply consists in providing each child with the same educational resources, and not adjusting for the differential efforts which ensue. By definition, in the world as I have constructed it, any difference in achievement, once types have been defined, is viewed as being the result of differential application of effort or, as I also say, of different autonomous choices that individuals make. Thus I view the different choices that individuals within a type make as relevantly autonomous in the sense of not being determined by circumstances (since circumstances are the same within a type). It is not obviously possible, however, to compare the difference in efforts made by individuals of different types: for those effort differences are in part due to their being different *distributions* of effort across types.

Although I have just explained how the conventional view (that equality of opportunity consists in supplying all children with the same amount of the social resource) can be viewed as a special case of my conception, there are many who would affirm the policy that I just stated parenthetically, yet do not think that all children belong to the same type, have the same set of circumstances. They may believe, instead, that it is inappropriate for the state to counteract biological and social differences by positive discrimination. According to what I have said so far, such people must be viewed as not advocating a level-the-playing-field conception of equal opportunity. They advocate only a partial leveling of the playing field.

I do not have a theory which would enable me to discover exactly what aspects of a person's environment are beyond his control and affect his relevant behavior in a way that relieves him or her of personal accountability for that behavior. In actual practice, the society in question shall decide, through some political process, what it wishes to deem "circumstances." Two kinds of disagreement would surface in the political discussion that would take place to select the appropriate circumstances: first, concerning what aspects of a person's behavior really lie beyond his control, and hence should be attributed to the effect of circumstances, and second, whether to level the playing field partially or fully. I shall return to these important issues in section 3, but here I wish to define the way that opportunities would be equalized, in my proposal, once the set of circumstances, and hence types, has been determined.

Pursuing the education example, one might advocate a set of circumstances comprising IQ, income and education levels of the parents, family type (married and living together, single parent, and so on), and number of

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siblings. Let us suppose that society chose this set of circumstances, which could be characterized as a vector with, say, five components. In practice, the first component, IQ, would be represented not by a continuous value, but perhaps by five intervals—thus the first component could take on five values. Similarly, each component could take on a (small) finite number of values. This would define a finite number of types; each type, in a nation the size of the United States, would contain a large number of individuals, large enough to be able to speak of continuous distributions of educational achievement within types, as a function of educational resources allocated to those types and of the efforts expended by children.

The process of arriving at the set of circumstances used to characterize type would be a contentious one, as I've said, in which different political, psychological, biological, and social views and theories would be debated. In democratic practice, different political parties would advocate different views, and the set of circumstances comprising type would ultimately be determined by, let us say, the Department of Education, whose chief officers would be appointed by the party in power. The choice of the set of circumstances, however, would be determined not only by different views in the above senses but by the practicalities of gathering information. For instance, many might agree that an important circumstantial variable in the child's ability to process educational resources is the love the parent has for the child, and her treatment of the child. It is, however, neither feasible nor, perhaps, appropriate (because invasive of privacy) to collect such information. Thus the circumstances should be easily observable and nonmanipulable characteristics of individuals.[1] A skeptic might argue against including IQ as a component of type, because a child could, theoretically, manipulate his performance on the IQ test. ("Now Johnny, play dumb on that test the teacher is giving you today.") I shall, however, offer another resolution to the problem of potential manipulability of type in section 5. (Another argument that I've alluded to, against the inclusion of IQ, is that IQ already reflects past effort of the child, and hence is not obviously something for which the child should not be held accountable.)

Clearly, the larger the set of circumstances, and the more finely we measure differences in components of circumstance, the more types there will be. Some compromise must be struck which will keep the number of types down to a manageable level.

1. I will relax this requirement later on.

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I turn next to another unresolved issue: in what average sense should achievements of the advantage in question be equalized across types? I propose (for the moment) distributing the resource in question across types so that type i receives some amount R_i of the resource per capita, and that the resource be distributed equally among individuals of the type. The problem is to decide upon the values $R_1, R_2, \ldots, R_T$, where there are T types. Let us assume that the society has determined what amount of the resource in question to set aside, so the only issue is how to allocate the resource among the types. There is a set of feasible resource distributions $\{\rho \mid \rho = (R_1, \ldots, R_T)\}$, given the requirement that the total amount of the resource has been preset at some amount, R, per capita.

Corresponding to any distribution ρ of the resource among types, there will be a distribution of effort levels and outcomes or educational achievement levels within each type. I continue to suppose that we can measure educational achievement levels and effort levels. Perhaps achievement would be measured by the score on a test administered when the child leaves school, or perhaps we would adopt, as a measure of the outcome or advantage in question, which is furthered by education, the wage the adult the child becomes eventually earns. Let us suppose that effort is monotonically related to the outcome, within type.

I propose to select the equality-of-opportunity distribution of the resource as follows. For any feasible ρ, there will be a distribution of effort levels in each type: call the distribution of effort levels in type i at distribution ρ, F^i_ρ. (Formally, F^i_ρ is a probability measure on the set of effort levels, which are non-negative real numbers.) Consider persons in different types who have each expended effort levels at the same centile of their type distributions of effort—say, to be concrete, the fiftieth centile. Thus these individuals are each at the median of their type distributions of effort. Since achievement is, by hypothesis, monotonically related to effort within type, and all individuals in the same type receive the same amount of the resource, each of these individuals is also at the median of her type distribution of achievement. I propose that we select a distribution ρ of the resource (across types) so that the achievement levels of these individuals are all equal.

But choosing the fiftieth centile of effort levels was just an example. I propose that a distribution of the resource across types be chosen so that, for *each* centile π, the achievement levels of all those at the πth centile of their respective effort distributions are equal. If such a distribution of the resource exists, I deem it to be the equal-opportunity policy.

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Now in actuality, it will usually not be possible to find a single distribution, ρ, of the available resource, which will simultaneously equalize the achievement levels of all those at the same centiles of their type distributions of effort, for *every* centile. In general, for each centile, there will be a distribution of the resource that equalizes achievement levels for the T persons (say) at *that* centile across types. (When I say "equalize," I really mean we seek the distribution that maximizes the minimum achievement level of the individuals, across all types, at the centile in question. Such a distribution always exists. It is the so-called maximin achievement distribution.) Thus we will have one hundred different distributions of the resource, one corresponding to each centile of effort. In section 4, I will propose a compromise solution, which will "average" these one hundred distributions in, I think, a plausible way. For the moment, however, I wish to ignore this problem, and so I suggest that we assume, for now, that these one hundred distributions all turn out to be identical: that is, there is one distribution of the resource, which we'll call ρ^{EOp}, which simultaneously, for every centile π, maximins the achievement levels of all those at the πth centiles of their type distributions of achievement. Since everyone in a given type receives the same amount of the resource, it follows that those at higher effort levels, within each type, end up with greater achievement.

What I must justify is the decision to "level" the achievements of individuals in different types, who are at the same centiles of their type distributions of effort, by an appropriate distribution of the resource. This is the task of the next section. Let me, at this point, simply point out why I do not propose to equalize the achievement levels of all those, across types, who expended the same *amount* of effort, supposing that we have an easy way of measuring that amount (for example, years of school attended might be a rough proxy for effort in the present example). That would be wrong, I contend, because the distribution of effort is a characteristic of the type, and hence is not something the person should be held accountable for. For example, suppose in type 1 the median level of effort is 5, and in type 2 it is 10. The median level of effort, in a type, is a characteristic of the distribution of effort, and since individuals in types should not be held accountable for those distributions, they should not be held accountable for the fact that those medians have different values. But by hypothesis, *where* in her own type distribution a person locates is due to her own autonomous choice—she could have placed herself, with suitable application of effort, at any centile. If persons in different types both fall at the median effort levels of their types,

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I declare them to have applied effort in equal *degrees*. I thus will distinguish between (absolute) levels and degrees of effort, and declare that leveling the playing field means guaranteeing that those who apply equal degrees of effort end up with equal achievement, regardless of their circumstances. The centile of the effort distribution of one's type provides a meaningful intertype comparison of the degree of effort expended in the sense that the level of effort does not.

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§ 3

Justifying the Proposal

The proposal in section 2 for how to equalize opportunities for achievement implements equal outcomes (there, educational achievements or future earnings) for individuals in different types who expend the same degree of effort, where a person's degree of effort is defined by his centile in the effort distribution of those of his type. (We continue to suppose that we have a direct measure of the level of effort.) I distinguished between degrees and levels of effort: persons exerting the same degree of effort, in different types, will generally not exert the same level of effort. The proposal may seem counterintuitive: should not, perhaps, an equal-opportunity policy seek to equalize outcomes for those who expend equal *levels* of effort, independent of circumstances?

Consider individuals of two types in the education problem, who have been provided with resources in amounts R_1 and R_2. Suppose type 1 consists of black children, living in the inner city, in single-parent homes with many siblings, whose parent did not graduate from high school, and type 2 consists of upper-middle-class suburban children living in two-parent homes, with two or fewer siblings, and whose parents both graduated from college. Suppose the levels of effort exerted by the first type range between 1 and 7, with a median of 2.5, and the efforts for the second range between 3 and 8, with a median of 5. Why are the supports of the effort distributions of the two types different?[2] Children form views about the desirability of exerting effort in school by observing what others are doing and by making inferences about the value of education from observing adults who have and have not achieved education, at various levels, and how their lives have consequently

2. The *support* of a distribution is the set of values that are taken on by it: for example, the interval [1, 7] for the first type.

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gone. These "views" include their beliefs and their preferences: preferences themselves may be influenced by beliefs, through cognitive dissonance, as in the sour-grapes phenomenon. Influenced by these beliefs and preferences, a child decides what is a reasonable level of effort to exert—some would say an optimal level, but I use "reasonable" as the adjective to suggest that the child's decision process is not necessarily entirely rational or well worked out. When we observe that no child of type 1 exerts an effort level of 8, while some children of type 2 do, I am suggesting that we should conclude that *no* child, were he to have been raised in the circumstances defining type 1, would have chosen an effort level of 8: exerting 8 is just a crazy thing to do, if your beliefs and preferences are those formed by a type 1 set of circumstances. This inference is based, in part, on there being a large number of individuals in type 1.

Thus I take the support of the distribution of effort observed in a type as delimiting the set of efforts one can reasonably expect of a person in those circumstances and provided with those resources. It is not the set of physically possible efforts—it may well have been physically possible for a type 1 child to have exerted effort level 8. Society says that, within a type, those who exert more effort are trying harder, and society attributes that propensity not to circumstances, but to persons' own autonomous choices: for by construction, all those in the same type have identical circumstances. One could, of course, argue that there are other, unobserved circumstances that explain the difference between those who exert effort 1 and effort 7 among type 1 children, but by hypothesis, that objection is, at this point, moot. For the characteristics of type constitute the full set of characteristics that society is willing to deem influence a person's relevant behavior and for which society will not hold him accountable. (There will always be mistakes, of course, consisting in incorrect measurements of circumstances, in the application of any such policy.)

Let us further suppose that Alan, in type 1, has exerted an effort level of 5, which occurs at the ninetieth centile of the effort distribution of type 1 children, and Betsy, a type 2 child, has exerted an effort level of 5 as well, at the median of her type's effort distribution. I think it is plausible to say that Alan has tried harder than Betsy. I take the empirical distributions of effort among type 1 and 2 children to imply the following: that if any large, randomly chosen group of children were to have been raised in type 1 circumstances, then only 10 percent of them would have exerted more effort than Alan did, while if any large, randomly chosen group of children were to have been raised in type 2 circumstances, 50 percent of

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them would have exerted more effort than Betsy did. In particular, had Betsy been raised in type 1 circumstances,[3] with maximum likelihood she would have exerted 2.5 units of effort, not 5 units. Taking into account their respective circumstances, Alan has tried harder than Betsy.

Finally, I think that under an equal-opportunity policy, individuals who try equally hard should end up with equal outcomes. Since I deem those at identical centiles of their effort distributions to have tried equally hard, my equal-opportunity rule is to distribute resources in that way which equalizes (more precisely, maximins) outcomes for all those at the same centile of their type distributions of effort.

The choice of the degree of effort (as measured by the percentile of effort levels within a type) as the relevant metric for how hard a person tries is justified by a view that, if we could somehow disembody individuals from their circumstances, then the *distribution* of the propensity to exert effort would be the same in every type. Underneath their circumstances, then, persons are not presupposed to be identical—they differ in their propensity to expend effort. What I call the *assumption of charity* says that, within any type, that distribution would be the same, were we able to factor out the (different) circumstances which define different types. The percentile metric is a way of making comparisons, across types, of the propensity to expend effort. José Ortega y Gasset put it well: "Yo soy: yo y mi circunstancia."[4] Underneath his circumstances a person is not simply a lump of homogeneous human clay, but retains some kind of deep individuality.[5]

Thus an equal-opportunity view is, in my interpretation, a desert-based view, in which reward is due to persons according to their propensity to expend effort. I take the assumption of charity to imply that, if two

3. This counterfactual might be difficult to imagine if circumstances include characteristics like genes.

4. "I am: I and my circumstance" (Ortega y Gasset 1983, p. 322 [1914]).

5. The assumption of charity concerns a metaphysical hypothesis that many will argue is incoherent: namely, that we can conceive of individuals denuded of their circumstances, and that differences among such denuded persons would still exist. I do not wish vigorously to defend this hypothesis: it is *one way* of justifying the thesis that individuals of different types who expend the same degree of effort have tried equally hard. Another way is simply to assert that the only relevant comparison group for an individual is his type cohort, and hence we must measure the degree of a person's effort by noting where it falls in the effort distribution of his type. This then provides a natural metric for inter-type comparisons of effort.

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actual persons with different circumstances exert the same degree of effort, their propensities to expend effort are the same, and they should, therefore, receive equal rewards—equal outcomes, whatever the outcome in question.[6]

J. R. Lucas (1995) makes a useful distinction between merit and desert. One merits something (say, a position on a baseball team) because of attributes one has, but one deserves a reward (say, for rescuing a drowning person) because of what one has done. Of course, one's attributes may be the consequences of both circumstances and effort, and likewise, "what one has done" may be in part a consequence of one's circumstances as well as of effort; so we cannot identify Lucas's "attributes" with my "circumstances" and his "what one has done" with my "effort." But I think Lucas's distinction between merit and desert is useful in our context, nevertheless. In a Lucasian meritocracy, a person would be rewarded according to his attributes, whether they were the consequence of effort or not. Thus a person with a high innate intelligence, who received high grades in secondary school though hardly trying, would gain entry into university. Indeed, all those with high grades in secondary school would gain entry, and only those. Under an equal-opportunity policy, were IQ a component of circumstance, some students who tried hard, but were not of high intelligence and did not receive high grades,[7] would also be admitted. Indeed, were university admissions governed entirely by an equal-opportunity policy, then admissions would be entirely due to degrees of effort, not IQ, insofar as IQ were deemed to be a circumstance. The fact that most of us would not advocate such a policy for university admissions does not mean that my definition of the equal-opportunity policy is awry—it means that we do not think it right that university admissions policy be (entirely) an equal-opportunity policy (or, alternatively, that we would not include IQ in the set of circumstances for the purposes of analyzing the university admissions issue).

I shall next introduce a distinction between responsibility and accountability, one not usually made in ordinary discourse. I am interested in these terms in the sense they bear in expressions such as being "responsible or

6. This claim is actually stronger than the assumption of charity, for that assumption only says that the *distribution* of the propensity to expend effort would be the same for all types, were we able to peel away their characterizing circumstances.

7. I here assume that grades reflect achievement, not effort.

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accountable for one's behavior." I will view accountability as defining a (partial) ordering on a set of behaviors performed by different persons. Thus one should be able to say, "Jill is to be held more accountable for doing Y than Jack is for doing X," or perhaps more precisely, "Jill is to be held more accountable for the consequences of her doing Y than Jack is for the consequences of his doing X." Perhaps responsibility also defines an order on behaviors, but I am not interested in that.

I will follow Thomas Scanlon (1988) in defining moral responsibility. For Scanlon, a person is morally responsible for a behavior if she decided to do it in a situation where she was of sound mind, so to speak. He elaborates:

> What is required [for moral responsibility] is that what we do be importantly dependent on our process of critical reflection, that that process itself be sensitive to reasons, and that later stages of the process be importantly dependent on conclusions reached at earlier stages. But there is no reason, as far as I can see, to require that this process itself not be a causal product of antecedent events and conditions. (Scanlon 1988, p. 176)

The last sentence is important for us; translated into our terminology, it implies that a person can be held morally responsible for a behavior even when it is determined by, inter alia, his circumstances (assuming that there will be a substantial overlap between socially defined circumstances and "antecedent events and conditions"). Thus, suppose it were the case that the typical German, under the Nazi regime, did not protest against the treatment of the Jews, even though he knew about it and thought about it. And further suppose that we could determine that his nonprotest was in large part attributable to circumstances (which might include being raised in a culture pervaded by anti-Semitism and obedience to authority). Such Germans would nevertheless be held morally responsible for their nonaction, by Scanlon's definition, supposing that we could credit them with sufficiently critical reflection.

To hold a person *accountable* for an action will mean that he should pay for it—he should, perhaps, compensate others who were harmed by the action, or be penalized by society for it. In other situations, a person who is accountable for a behavior, which has consequences for him, must accept those consequences—society has no moral mandate to adjust those consequences. Now we may, in many though not all cases, think that a person can be held accountable for a behavior only if he is responsible for it. (We do not hold the hypnotized person, who is not responsible, liable for the

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damage he did to someone while under hypnosis.) But it is the converse that interests me more: holding a person responsible does not always mean we should hold him accountable. Thus, for example, we may decide that an adolescent is responsible for a poor attendance record at school, because she decided to cut classes frequently, but nevertheless not hold her accountable for it, by our taking steps to repair her consequent educational deficit, if her circumstances explained her behavior.

I say that individuals should be held accountable for their degrees of effort but not their levels of effort. The consequence of an action for a person should not depend on his circumstances, but it should depend on how hard he tries. Those who expended the same degree of effort should be held equally accountable for the consequences; since they are equally accountable, their rewards (which is to say, levels of the relevant advantage or welfare) should be equal. We can hold a person accountable for a bad behavior only if it would have been reasonable for one in her circumstances to have behaved better: but the set of reasonable behaviors depends upon one's type, and is, I have argued, justifiably taken to be the set of observed behaviors of the type. Thus, although Alan and Betsy exerted the same 5 units of effort in the educational example described earlier, Betsy is more accountable for her relatively low educational achievement than Alan is for his, because he tried harder. And so under the equal-opportunity policy, Alan ends up with higher achievement than Betsy.

I say it is morally wrong to hold a person accountable for not doing something that it would have been unreasonable for a person in his circumstances to have done. Thus consider type 3, all of whose members exert effort levels between 1 and 2 with a certain resource endowment. It is wrong to say that these individuals deserve educational achievements less than someone in type 2 who exerted "3" in effort, where many individuals of type 2 exerted more than 3. For the assumption of charity says that it would be unreasonable to expect anyone from a large, randomly chosen group of persons to have exerted effort 3, were his circumstances to have been those of type 3, while many of such a group of persons would have exerted 3 or better, had they been more fortunate in circumstances.

The distinction between responsibility and accountability enables us to maintain certain moral standards, with respect to actions, yet not punish the person who performs a bad act if only a superhuman would have avoided the act under those circumstances. Thus suppose the median effort level among type 1 children (always, in the above education problem) involves cutting school one day a week. We can say, "That's a bad thing to do, and we hold you responsible for doing it," yet at the same time we need not hold the child

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accountable by declining to repair his educational deficit, which would, without further intervention, otherwise follow from the behavior. So an equal-opportunity policy may require providing more educational resources to some children who cut classes than to others who do not, by virtue of their circumstantially determined behavior. (Of course, the distribution of effort—in particular, the frequency of class-cutting behavior—will itself be influenced by the allocation of the educational resource.)

I have said that many would argue that the set of circumstances should coincide with characteristics of the environment (broadly defined) which influence behavior yet are beyond the person's control. But there is a prominent position in egalitarian political philosophy which disagrees. Ronald Dworkin (1981a, b) argues that persons should be held accountable for their choices, even if they follow from preferences which were in part or entirely formed under influences beyond their control, as long as they identify with those preferences. Indeed, the scheme that Dworkin proposes to implement "equality of resources," of hypothetical insurance contracting behind a thin veil of ignorance, is one that is intended to let persons sustain the consequences of their preferences but not of what he calls their resource endowment, which consists of certain aspects of their social and biological endowment beyond their control. (I have argued elsewhere [Roemer 1996, chap. 7] that Dworkin's insurance scheme fails to implement a policy consonant with his philosophical view, but that point is tangential to the present discussion.) The only kinds of choice for which Dworkin does not hold the person accountable are ones devolving from cravings and addictions, preferences the person wished she did not have.

According to Dworkin's view, the type 1 young person who cuts school because she has a distaste for it—a distaste not uncommon among those of her type—would be accountable for that action, as long as she identifies with her preferences, is glad she has them, and sees no reason to change them. (We must also assume that this student has reached an age at which she is deemed capable of autonomous choice.) Dworkin's move, here, is motivated by a fear that not holding a person accountable for the consequences of exercising tastes with which she identifies would risk demeaning the integrity of the person, compromising the respect that society owes her as a person with the capacity to make her own way. But I do not hold a person's identification with her preferences to be quite so sacred—at least, with respect to many kinds of preference. Preferences are often adjusted to what the person falsely deems to be necessity, and society does her no favor by accepting the consequences that follow from exercising them.

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There are, however, some preferences that, even though formed under influences beyond the person's control, must be respected, in the sense that society should not try to adjust the consequences a person endures from their exercise. Scanlon (1986) gives the example of a person who takes on a religion which requires of him a penurious style of life, where his adoption of the religion was clearly due to training he received at a very early age. Let us suppose that the penury of his lifestyle reduces his opportunities below the norm, owing to the man's consequent poor health or general functioning. I agree with Scanlon that this situation is not an injustice or a violation of equal opportunity, *if* it is clear that the man's adoption of the religion was not in fact due to circumstances which made penury seem unavoidable, for were that the case, then it would be hard to distinguish the behavior of adopting the religion from the fox's decision to dislike the unreachable grapes.[8] In the example of the class-cutting adolescent, I asserted that her distaste for school could arguably be traced in no small part to her circumstances, which made schooling appear to be a waste of time. If few of her type had school-hating preferences, however, then the consequences of exercising her preferences would appear as low effort, the results of which she would be more accountable for.

Amartya Sen (1985) gives the example of the "tamed housewife" to show the undesirability of taking the welfare of individuals, as they measure it, as the right equalisandum of an egalitarian theory of justice. The tamed housewife is one who, owing to the apparent impossibility of surviving outside a highly restricting marriage, adopts preferences in which she likes cleaning house, changing diapers, washing dishes, and the like. (Other examples are "the battered slave, the hopeless destitute.") Must an equal-opportunity policy accept the self-limiting views of tamed housewives, because they identify with their preferences, or should it provide resources which might enable them to reconsider their preferences? I think the latter. The question an equal-opportunity view must consider is not simply whether a person identifies with his preferences, but whether preferences which attribute low value to certain "lifestyles" were adopted precisely because the person perceived that those lifestyles were unattainable.

8. If his adoption of the religion were clearly due to disadvantaged circumstances, then I would take further steps to make resources available to him, although not, of course, forcing the resources upon him, to the detriment of what he believes to be the right way to live.

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It must be noted that I am not the first to question Dworkin's partition, which holds individuals accountable for their preferences but not for their "resources." G. A. Cohen (1989) and Richard Arneson (1989) both made the point that Dworkin had misdrawn the line which separates those aspects of a person for which he should be held accountable from those for which he should not, in an egalitarian theory of justice. The present essay, as I've noted, is in large part the result of my reflection on these articles.

I now take up the two problems raised in section 2 that would arise in the discussion to delineate the set of circumstances. First, there is the nontrivial question of deciding when an aspect of the environment should be placed in the set of circumstances, and second, there is the issue of whether to level the playing field partially or fully. Let me elaborate upon the first issue with an example due to Brian Barry.[9] Consider education, and a type of child whom we shall call "Asian." Asian children generally work hard in school (expend high effort) and thereby do well, because their parents press them to do so. They are to be distinguished from children of another type, whom we shall call "academic," who also generally do well in school, although they expend lower levels of effort than do Asian children. Academic children do well because they have absorbed an intellectual culture at home that makes success in school come easy. Let us suppose, in fact, that there is a distribution of the educational resource between the two types that engenders identical distributions of educational achievement (or future earnings, if that is the measure of advantage) for the two types. According to my definition (and assuming there are no other types), this would constitute the equal-opportunity policy.

Now Barry objects that, in point of fact, the Asian students have tried harder than the academic students at this distribution, in a way which calls for more reward than they are receiving. Granted, he says, the Asian students have worked hard because of familial pressure, an aspect of the environment beyond their control, but nevertheless, if reward is due to effort, then they should receive more reward than the academic children, for they really tried harder. The fact that their generally high levels of effort were due to familial pressure does not make their having expended high effort less admirable and less deserving of reward than it would have been absent such pressure.

The issue, then, is whether to include "Asian" as an element of circumstance. If we do not, then the fact that Asian children work harder in school

9. In conversation, September 1, 1996.

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will be attributed to their autonomous effort rather than to a cultural circumstance, and they will be more rewarded than they would be if we factor out the effect of familial pressure on their behavior, as described in the previous paragraph.

The example is important, for it claims to show that the salient question, in regard to whether effort should be rewarded, is not whether it was induced by a factor beyond the individual's control. There is, it is claimed, something more morally admirable in what Asian children do to succeed in school than in what academic children do. What they do is expend more effort, and Barry says that that's what counts, not that their expending more effort was determined by a factor outside their control.

Although I find Barry's example provocative, it does not convince me that the approach I have advocated—in which "Asian" should be listed as an element of circumstance—is wrong. I think Barry's rock-bottom view is that pain should be rewarded, where pain, in this example, is suffered by Asian children, who put their noses to the grindstone, in contrast to academic children, who sail through. But that is not the rock-bottom view behind equality of opportunity, which is, rather, that autonomously taken effort should be rewarded. If the Asian child does not view himself as having a choice in regard to whether or not to expend effort, because it is simply *expected* by his family that he will, then he is not as morally deserving, under the equal-opportunity view, as someone who expends effort even though he felt no obligation to do so. We decide how much effort the Asian child took on autonomously by comparing his behavior with that of others of his type.

Now to the second problem, which can be illustrated by asking whether we should include IQ as an element of circumstance in the education problem. I suppose, now, that IQ is a measure of pure ability, unpolluted by the previous exercise of effort. Let us assume that a high IQ makes it easier for a person to succeed in school with low effort. The issue is whether we think that those with high IQ should, nevertheless, have greater access to advantage (say, future income) than those with low IQ who applied the same *degree* of effort. I think that many would answer this question affirmatively, in which case they would advocate not including IQ as an element of circumstance. They would advocate only partially leveling the playing field.

There are two reasons (I can think of) for that advocacy. The first is on account of "efficiency": if we allocated educational resources so that low IQ persons ended up with the same future wages as high IQ persons, at the

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same degrees of effort, then we must have reduced aggregate output below what it would have been had we, say, given the same amounts of resources to high IQers and low IQers.[10] High IQers are more efficient utilizers of educational resources than low IQers in the sense of eventually producing more output valued by society for the same input of educational resources.

I do not maintain that such efficiency issues are unimportant: quite the contrary. But a distinction must be made between what defines the equal-opportunity policy, and whether or not we wish to apply it with full force. (More on this in sections 12 and 13.) I maintain that the equal-opportunity policy requires including IQ as an element of circumstance. Now we may decide to constrain the implementation of the policy, because of the deleterious efficiency consequences it would have in some cases. Not including IQ as an element of circumstance would be one way of doing so.

The second reason for not including IQ as an element of circumstance is that a person might be thought to deserve to benefit by virtue of her high IQ. This is an instance of what Cohen (1995) calls the thesis of self-ownership, that a person has an entitlement to benefits that flow from her personal attributes, in, let us say, a market economy. I claim not that this thesis is indefensible but, rather, that it conflicts with the equal-opportunity view.

There is, finally, a different kind of criticism of my proposal, that says it in fact implements an unattractive kind of outcome equality and thus does not preserve the essential aspect of equality of opportunity, that individuals be held accountable for their actions.

My proposal does not entail that outcomes be equalized for all, but only within particular segments of the population, where such a segment consists of all those with different circumstances who have applied the same degree of effort. I gave, in addition, an argument to justify my way of measuring the degrees of effort expended by those in different circumstances. The criticism I have in mind does not challenge that particular way of calibrating degrees of effort, but rather challenges the claim that opportunities are equalized by distributing resources to equalize outcomes among those who are deemed to have exerted the same degree of effort. I respond that the general view of outcome egalitarianism is only morally objectionable because it fails to hold persons accountable for things they should be held accountable for. My proposal endeavors to hold people accountable for just

10. I here assume that wages are monotonically related to the amount of output produced by the worker.

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the right things, or just the things that the society in question thinks they should be held accountable for.

Indeed, an opportunity is a vague thing. It is not a school or a plate of nourishing food or a warm abode, but is, rather, a capacity which is brought into being by properly using that school, food, and hearth. It is not immediately obvious how to equalize opportunities, because they are not material things with self-evident sizes. Building identical schools and staffing them with identical teachers in several communities in which children live in very different circumstances therefore will not generally equalize their opportunities for success: the commonly held view to the contrary is based on a fetishist error of identifying an opportunity with a material object that can at best help bring it about. An opportunity, to use Cohen's (1989) phrase, is an access to advantage. What society owes its members, under an equal-opportunity policy, is equal access; but the individual is responsible for turning that access into actual advantage by the application of effort.

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